A Tour of Indian Law and the Full Course Curriculum

Law Refresher Course for a 1994 LLB graduate returning to practice | Updated October 2026

Part 1: How Indian Law Is Organised

1.1 The Constitution sits at the top

Every law in India draws its authority from the **Constitution of India (1950)**. A law that conflicts with it is void (Article 13). The Constitution:

- creates the three organs: **Legislature** (makes law), **Executive** (enforces law) and **Judiciary** (interprets law)
- divides law-making power between the Centre and the States through the **Seventh Schedule**:
  - **Union List**: Parliament alone, e.g. banking, securities, income tax
  - **State List**: State Legislature alone, e.g. land, police, local government
  - **Concurrent List**: both, e.g. contracts, civil and criminal procedure, marriage, transfer of property. If they conflict, the central law usually prevails (Article 254).

1.2 Sources of law

Source	What it is	Example
Constitution	The supreme law	Article 21, right to life and personal liberty
Statutes (Acts)	Laws made by Parliament or a State Legislature	CPC 1908, Contract Act 1872
Delegated legislation	Rules, regulations and notifications made under an Act	SEBI Regulations, CPC Orders as amended by the High Court
Judicial precedent	Decisions of higher courts bind lower courts	Supreme Court law binds all courts (Article 141)
Custom and personal law	Customs and religious laws in family matters	Hindu and Muslim personal law

1.3 Hierarchy of courts (Andhra Pradesh example)

Level	Court	What it hears
1	**Supreme Court of India**, New Delhi	Final appeals, constitutional matters, Article 32 writs
2	**High Court of Andhra Pradesh**, Amaravati	Appeals, revisions, Article 226 and 227 writs
3	**District and Sessions Court** (e.g. at Nandyal)	District-level civil appeals and suits, sessions trials
4	**Senior Civil Judge** and **Chief Judicial Magistrate**	Civil suits above the junior limit, criminal trials
5	**Junior Civil Judge** and **Judicial Magistrate**	Smaller civil suits, criminal trials
Special	Tribunals and Commissions	Consumer Commissions, DRT, NCLT, Family Courts, MACT, RERA

Memory trick: "Constitution is the roof, statutes are the walls, rules are the bricks, and judgments are the cement that holds them together."

Part 2: The Major Changes Since 1994

These are the changes you most need to catch up on, because they did not exist when you graduated.

Year	Change	Why it matters
1996	**Arbitration and Conciliation Act** replaced the 1940 Act	Arbitration is now the main route for commercial disputes
1999 / 2002	**CPC amendments**	Strict timelines, limited adjournments, ADR under Section 89

Year	Change	Why it matters
2000	**Information Technology Act**	Electronic records, e-signatures, cyber offences
2002	**SARFAESI Act**	Banks recover secured loans without going to court
2005	**RTI Act**; **Domestic Violence Act**; **Hindu Succession amendment**	Daughters became coparceners (equal birthright in joint family property)
2013	**Companies Act** and the new **Land Acquisition Act** (RFCTLARR)	Both replaced Acts from the 1950s and 1890s
2015	**Commercial Courts Act**	Fast-track commercial suits with a strict 120-day written statement
2016	**Insolvency and Bankruptcy Code**; **RERA**	A new insolvency regime; protection for home buyers
2017	**GST**	One national indirect tax replaced many older taxes
2018	**Specific Relief Act amendment**	Specific performance is now the normal remedy, not discretionary
2019	**Consumer Protection Act**	E-commerce and product liability; e-filing of complaints
2023	**Mediation Act**; **Digital Personal Data Protection Act**	A formal mediation framework; data privacy law
1 July 2024	**BNS, BNSS and BSA** replaced the **IPC, CrPC and Evidence Act**	All criminal and evidence work now uses the new section numbers
21 Nov 2025	**Four Labour Codes** in force	They consolidate 29 central labour laws
1 April 2026	**Income-tax Act, 2025** in force	Replaces the Income-tax Act, 1961

Verify before use: laws keep changing. Before you rely on a section in court, check the current bare Act on India Code (indiacode.nic.in) and recent judgments on SCC Online or Indian Kanoon.

Part 3: Map of All Major Indian Laws

A. Foundation subjects

Law	What it covers
Constitution of India, 1950	Fundamental rights, writs, separation of powers, Centre–State relations
Jurisprudence	Theory of law: sources, rights and duties, ownership, possession
Interpretation of Statutes and the General Clauses Act, 1897	How courts read and apply laws

B. Procedural laws (how cases move through courts)

Law	What it covers
Code of Civil Procedure, 1908	Procedure in civil suits, from filing to execution
Bharatiya Nagarik Suraksha Sanhita, 2023 (BNSS)	Criminal procedure: FIR, arrest, bail, trial. Replaces the CrPC.
Bharatiya Sakshya Adhiniyam, 2023 (BSA)	Evidence in civil and criminal cases. Replaces the Evidence Act.
Limitation Act, 1963	Time limits for suits, appeals and applications
Court Fees Act and Suits Valuation Act (AP law)	Valuation of suits and the court fee payable
Commercial Courts Act, 2015	Special procedure for commercial disputes

C. Civil and commercial substantive laws

Law	What it covers
Indian Contract Act, 1872	Formation of contracts, breach, damages, indemnity, guarantee, agency

Law	What it covers
Specific Relief Act, 1963	Specific performance, injunctions, declarations
Sale of Goods Act, 1930	Sale contracts, conditions and warranties
Partnership Act, 1932 and LLP Act, 2008	Firms and limited liability partnerships
Negotiable Instruments Act, 1881	Cheques, including cheque bounce under Section 138
Law of Torts	Negligence, nuisance, defamation (mostly judge-made law)
Consumer Protection Act, 2019	Deficiency in service, unfair trade practices
Arbitration and Conciliation Act, 1996; Mediation Act, 2023	Out-of-court dispute resolution

D. Property and land laws

Law	What it covers
Transfer of Property Act, 1882	Sale, mortgage, lease, gift, exchange
Registration Act, 1908 and the **Indian Stamp Act** (AP amendments)	Which documents must be registered and stamped, and the effect of not doing so
Indian Easements Act, 1882	Rights of way, light and water
RERA, 2016 and the AP RERA Rules	Real estate projects and buyer protection
RFCTLARR Act, 2013	Land acquisition and compensation
AP Rights in Land and Pattadar Pass Books Act, 1971	Revenue records (pattas, the 1-B register, adangal)
AP Buildings (Lease, Rent and Eviction) Control Act, 1960	Tenancy and eviction of tenants
AP Land Reforms (Ceiling on Agricultural Holdings) Act, 1973	Land ceiling

E. Family and succession laws

Law	What it covers
Hindu Marriage Act, 1955	Marriage, divorce, maintenance
Hindu Succession Act, 1956 (amended 2005)	Inheritance. *Vineeta Sharma v. Rakesh Sharma* (2020): daughters are coparceners by birth.
Hindu Adoptions and Maintenance Act, 1956; Hindu Minority and Guardianship Act, 1956	Adoption, maintenance, guardianship
Muslim Personal Law (Shariat) Application Act, 1937; Muslim Women (Protection of Rights on Marriage) Act, 2019	Muslim family law; the 2019 Act made triple talaq an offence
Special Marriage Act, 1954; Indian Succession Act, 1925	Inter-faith marriage; wills and probate
Protection of Women from Domestic Violence Act, 2005	Residence, protection and monetary relief
Family Courts Act, 1984; Guardians and Wards Act, 1890	Family court procedure; custody

F. Criminal laws

Law	What it covers
Bharatiya Nyaya Sanhita, 2023 (BNS)	Offences and punishments. Replaces the IPC.
BNSS, 2023 and BSA, 2023	Procedure and evidence (see Part B above)
NDPS Act, 1985	Narcotics
POCSO Act, 2012	Sexual offences against children
Prevention of Corruption Act, 1988	Corruption by public servants
IT Act, 2000 (criminal provisions)	Cyber crime
SC/ST (Prevention of Atrocities) Act, 1989	Atrocities against Scheduled Castes and Tribes

G. Corporate, banking and securities laws (relevant to your share trading)

Law	What it covers
Companies Act, 2013	Incorporation, directors, meetings, shareholder remedies
Insolvency and Bankruptcy Code, 2016	Corporate insolvency (the NCLT) and personal insolvency
SARFAESI Act, 2002 and the RDB Act, 1993	Bank recovery, the DRT
SEBI Act, 1992; Securities Contracts (Regulation) Act, 1956; Depositories Act, 1996	Stock market regulation, insider trading, investor protection
FEMA, 1999; PMLA, 2002	Foreign exchange; money laundering
Competition Act, 2002	Anti-competitive agreements, abuse of dominance

H. Tax laws

Law	What it covers
Income-tax Act, 2025 (in force from 1 April 2026)	Direct tax. Replaces the 1961 Act.
CGST Act, 2017 and the AP GST Act, 2017	GST on goods and services, including your function hall bookings

I. Labour and industrial laws

Law	What it covers
Code on Wages, 2019	Minimum wages, payment of wages, bonus
Industrial Relations Code, 2020	Trade unions, layoffs, disputes
Code on Social Security, 2020	PF, ESI, gratuity, maternity benefit
Occupational Safety, Health and Working Conditions Code, 2020	Workplace safety

J. Public and administrative laws

Law	What it covers
Administrative Law	Natural justice, judicial review, writs
Right to Information Act, 2005	Getting information from public authorities
Environment laws (EP Act 1986, Water Act 1974, Air Act 1981)	Pollution and environmental clearances
Digital Personal Data Protection Act, 2023	Collection and use of personal data
Motor Vehicles Act, 1988	Accident claims (MACT)

K. Professional skills

Subject	What it covers
Advocates Act, 1961 and **Bar Council of India Rules**	Enrolment, the AIBE, professional conduct
Professional Ethics	Duties to the court, the client and opponents
Drafting, Pleading and Conveyancing	Plaints, written statements, petitions, sale deeds, agreements, notices
Moot court and court craft	Arguments, examination of witnesses, legal research

Part 4: Your Study Curriculum (in order)

The order is chosen so that each subject builds on the previous one, starting with what you need most for practice in Nandyal and for the AIBE.

No.	Subject	Classes	Key focus
Phase 1	**Civil practice core**		
1	Code of Civil Procedure, 1908	2 (done)	Jurisdiction, pleadings, injunctions, appeals, execution
2	Limitation Act, 1963	1	Time limits, condonation of delay (S.5), acknowledgment (S.18)
3	Indian Contract Act, 1872	2	Offer, consideration, void contracts, breach, damages
4	Specific Relief Act, 1963 (2018 amendment)	1	Specific performance, injunctions, declarations
5	Transfer of Property Act, Registration Act and Stamp Act	2	Sale, mortgage, lease, gift; registration; AP stamp duty
6	Bharatiya Sakshya Adhiniyam, 2023 (Evidence)	2	Relevancy, burden of proof, electronic evidence, witnesses
Phase 2	**Criminal practice**		
7	Bharatiya Nyaya Sanhita, 2023	2	General exceptions, offences against body, property and documents
8	Bharatiya Nagarik Suraksha Sanhita, 2023	2	FIR, arrest, bail, trial, appeals
9	Negotiable Instruments Act (Section 138)	1	Cheque bounce prosecutions, which are very common work
Phase 3	**Family and property**		
10	Hindu law (marriage, succession, adoption, maintenance)	2	2005 amendment, partition suits
11	Muslim law, Special Marriage Act, Domestic Violence Act	1	Personal law and women's protection
12	AP land laws and Rent Control	1	Revenue records, tenancy, eviction
Phase 4	**Constitution and public law**		
13	Constitution of India	2	Fundamental rights, writs, Articles 226 and 227
14	Administrative law and RTI	1	Natural justice, judicial review
Phase 5	**Business and commercial**		
15	Consumer Protection Act, 2019	1	Directly relevant to your function halls
16	Arbitration and Mediation	1	Section 34 challenges, Section 9 interim relief
17	Companies Act, IBC, SARFAESI	2	Corporate disputes and recovery
18	SEBI and securities law	1	Relevant to your share trading
19	Torts and Motor Vehicles Act (MACT)	1	Negligence, compensation
20	Labour Codes, GST and Income-tax basics	1	Overview for advising businesses
Phase 6	**Becoming a practising advocate**		
21	Advocates Act, Bar Council Rules and Professional Ethics	1	Enrolment and the AIBE
22	Drafting, Pleading and Conveyancing	3	Model plaint, written statement, bail petition, sale deed, legal notice
23	AIBE revision and mock tests	2	Practice with past-paper style questions

Total: about 35 classes. Each class comes with its own PDF: the lesson, landmark and recent cases, memory tricks, a time-limit chart where relevant, and a test.

Part 5: How Each Class Works

1. **Lesson**: the important sections explained simply, with examples from your own business.
2. **Cases**: classic landmark judgments plus recent Supreme Court rulings.
3. **Tricks**: mnemonics and comparison tables to help you remember.
4. **Test**: one-line answers, short notes and a practical problem. You reply and I grade.
5. **PDF**: a downloadable copy of every class, so you can build your own notes file.

Part 6: Steps to Start Practising

- **Enrolment:** apply to the **Bar Council of Andhra Pradesh** with your LLB degree, marks memos, transfer and migration certificates, and the required declarations. A person who has been in other employment declares that they have left it.
- **AIBE:** after enrolment, pass the **All India Bar Examination** to receive the Certificate of Practice. It is an open-book, multiple-choice exam.
- **Junior years:** work under a senior advocate at the Nandyal courts for at least 1 to 2 years. Drafting and court craft are learned by doing.
- **Your advantage:** your 26 years in business, management and FMCG, plus your understanding of markets, give you a natural fit for **commercial, consumer, property and securities** work.

Check the latest enrolment fees and the AIBE schedule on the official Bar Council of India and Bar Council of Andhra Pradesh websites before you apply.